

**SYNTHETIC COURT DOCUMENT — FICTIONAL CASE — NOT AN
ACTUAL FILING**

Record class: numbered Rule 56 factual statement.

UNITED STATES DISTRICT COURT FOR THE WESTERN DISTRICT OF VIRGINIA

Civil Action No. SYN-WDVA-25-CV-0733

Officer Rusk's Statement of Undisputed Material Facts

Filed November 21, 2025.

Parties, claim, and record convention

1. Mara Ellison filed this action concerning force used during a February 3, 2025 welfare encounter. Her amended complaint leaves one individual-capacity Fourth Amendment claim against Officer Nolan Rusk. The City of Alder Creek and Chief Samuel Orton are no longer parties.
2. Rusk was an Alder Creek Police Department patrol officer acting under color of state law. Officer Priya Vega responded as the assisting officer but is not a defendant.
3. The encounter occurred in the Building C exterior breezeway at Larkspur Court Apartments, 1844 Holloway Road, Alder Creek, Virginia. The physical layout includes a wall, railing, landing, and stairs.
4. This statement cites record subjects by description. Where a numbered paragraph attributes a statement to a witness, the undisputed point is that the witness gave the stated account; Ellison may dispute the underlying event. Rusk separately identifies his contention that the whole record permits only his inference.

Rusk fact statement — call and response chronology

5. At 19:42:11, Iris Ellison called 911 concerning her sister's medication and mental-health crisis. She asked for a welfare check and reported no known weapon or threat. The authenticated call preserves her description.
6. Dispatcher Lena Cho transmitted the welfare request at approximately 19:47:36. The dispatch did not identify a completed crime or direct officers to make an arrest.
7. Rusk arrived at approximately 19:52:14 and activated or had activated his body camera. He contacted Ellison around 19:52:48 in the Building C breezeway. Vega arrived to assist.
8. Ellison was seated at the beginning of contact and no weapon was visible in her hands. She was distressed and did not promptly follow each direction to stand and engage in assessment.
9. Near 19:53:02, Rusk grasped and restrained Ellison's wrist. Rusk agrees she was seized by that point. The parties dispute whether the manner and continuation of that restraint were reasonable as the encounter changed.

Rusk fact statement — physical movement

10. After wrist control began, Ellison's arm and upper body moved relative to Rusk. She admits pulling or recoiling from the grip but says she did so because it hurt. Rusk characterizes the movement as active twisting against control.
11. Rusk testifies that Ellison struck his forearm during the close movement. Ellison denies a strike. Vega did not obtain a reliable view that confirms or refutes that alleged contact.
12. Rusk also testifies that Ellison moved a hand toward his duty belt while the officers were in close quarters. Ellison denies reaching, grabbing, or threatening equipment. Vega cannot reliably identify the hand position during the pivotal seconds.
13. No weapon was recovered from Ellison, and she did not verbally threaten an officer. Rusk's asserted safety concern arose from the physical acts he says he perceived, not from a weapon report in the original call.
14. The parties agree Ellison did not flee from the complex before the device activation. They disagree whether her movement created an immediate danger requiring the challenged escalation.

Rusk fact statement — recordings and obscuration

15. Sergeant Lila Grant exported the two officer recordings and associated metadata. The files match the produced manifests, and no party identifies a cut or inserted sequence in the media.
16. Between approximately 19:53:08 and 19:53:22, bodies, clothing, the railing, and camera position prevent a continuous, reliable view of Ellison's hands relative to Rusk's forearm and duty belt.
17. At approximately 19:53:11, audio records Rusk saying “stop pulling” and Ellison saying “you're hurting me.” Additional commands, a cry, and movement noises occur. The parties dispute what physical conduct accompanied those sounds.
18. Professor Adrian Crane concludes that ordinary enhancement cannot reveal an object physically covered in the recording and that generated frames or pose interpolation would not constitute observed evidence. Rusk does not rely on reconstructed imagery.
19. The recordings establish general sequence and timing but do not conclusively depict either the alleged forearm strike and belt reach or Ellison's denial of those acts.

Rusk fact statement — force and restraint

20. Rusk used a department-issued conducted-energy weapon in drive-stun contact mode while moving Ellison toward the breezeway floor. No separated probes were fired.
21. The device download records one cycle lasting approximately five seconds, from 19:53:16 through 19:53:21. Rusk did not activate a second cycle.
22. The camera image becomes materially clearer at approximately 19:53:22, after the recorded cycle. Rusk and Vega then worked to secure Ellison's arms.
23. Ellison was handcuffed by approximately 19:53:37. Officers checked or adjusted the restraints, and no additional conducted-energy use or strike occurred after handcuffing.
24. Rusk states that his purpose was to interrupt an asserted strike and access to duty-belt equipment and to gain control. Ellison states the cycle punished or overrode low-level pulling without an immediate threat. The force consisted of the one cycle, takedown, and restraint at issue in the amended complaint.

Rusk fact statement — medical findings, review, and experts

25. Paramedic Mateo Cole assessed Ellison and participated in transport to Alder Creek Regional Medical Center. He did not witness the force or the disputed movements.
26. The medical evidence identifies a wrist abrasion, two superficial contact burns, and shoulder strain. Imaging showed no fracture. Rusk does not dispute those documented findings.
27. Ellison denied striking or reaching during medical assessment; Rusk had reported both acts. The medical findings do not reconstruct the hidden hand movements.
28. Ellison was distressed but cooperative after the scene stabilized. Her later conduct does not establish how she moved earlier.
29. Rusk reported forearm soreness but sought no hospital care. The absence of lasting visible injury does not establish whether brief contact occurred.
30. Lieutenant Marcus Hale's administrative review preserved the competing accounts, Vega's limited view, device data, and care. It added no camera angle and did not adjudicate credibility.
31. Dr. Dana North states that a perceived strike and equipment reach would increase the safety concern, but finds a drive stun disproportionate on Ellison's no-danger assumptions.
32. Retired Captain Rowan Pike supports one cycle on Rusk's facts, not when assumptions exclude a strike, reach, flight, and immediate threat.
33. Crane addresses media integrity and timing, not reasonableness, and finds the hand movements unresolved.
34. Material threat and resistance facts remain disputed. No expert generates hidden video or selects the historically correct account.

Rusk fact statement — procedural posture

35. Discovery closed under the Court's scheduling order after depositions, expert disclosures, and production of the native media and device data. The parties preserved interpretation and admissibility objections while agreeing on the authenticity of specified exports.
36. Rusk filed his motion, supporting memorandum, this statement, and exhibits on November 21,
37. Ellison's response deadline is governed by the scheduling order.
38. The amended complaint challenges Rusk's individual conduct. It does not ask the Court to resolve a municipal custom, supervisory liability, criminal prosecution, or the validity of a commitment order.
39. Rusk invokes qualified immunity. The Court may analyze whether the assumed facts establish excessive force and whether the particular right was clearly established on February 3, 2025.
40. If the Court concludes the competing accounts create a genuine factual dispute, the dispute concerns evidentiary sufficiency and historical fact. Any legal qualified-immunity ruling should identify its factual assumptions without converting them into a final credibility finding.